

25STCV08931 25STCV08931

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-08-06

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C311%2C08%2F06%2F2026

Source SHA-256: a128282bce7c6bad2a629817a1b6baac8351092c89370c95a162455a44a40775

Case Number: 25STCV08931 Hearing Date: August 6, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV08931

HUGE

USA, INC., A CALIFORNIA CORPORATION DOING BUSINESS AS VIBRANT M.I.U. vs NAM

SUK PARK

August

6, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT NAM SUK PARK'S MOTION TO SET ASIDE ENTRY OF DEFAULT, DEFAULT

JUDGMENT, ANY AND ALL LEVIES, AND COLLECTIONS BASED ON EXECUTION OF ANY AND ALL
LEVIES.

RULING:

The Court grants the Motion.

The Court vacates and sets aside the Entry of Default against Defendant NAM SUK PARK dated January 22, 2026, and the Default Judgment filed on April 29, 2026.

The Court recalls the Writ of Execution received on June 17, 2026.

On or before August 21, 2026, Defendant may serve and file the proposed Answer, as a separate document and not attached as Exhibit A to the Motion.

The Court sets a Case Management Conference for: November 12, 2026 at 8:30 a.m. in Dept. 311.

Defendant to give notice.

I.

BACKGROUND

On March 27, 2025, HUGE USA, INC. (Plaintiff) filed a Complaint against NAM SUK PARK (Defendant), listing the following Causes of Action:

1. VIOLATIONS
OF CALIFORNIA PENAL CODE § 502 (COMPREHENSIVE COMPUTER DATA ACCESS AND FRAUD ACT)

2. INVASION
OF PRIVACY

3. CONVERSION

4. BREACH
OF DUTY OF LOYALTY

5. UNJUST
ENRICHMENT

6. DECLARATORY
RELIEF

7. VIOLATION
OF THE STORED COMMUNICATIONS ACT (18 U.S.C. § 2701 ET SEQ.)

8. VIOLATION
OF THE COMPUTER

9. FRAUD
AND ABUSE ACT (18 U.S.C. § 1030 ET SEQ.)

10. INTRUSION
UPON SECLUSION.

Plaintiff alleges that this case arises from Defendant's illegally accessing Plaintiff's confidential business records, instructing an intermediary to violate company security protocols, and destroying evidence to evade liability, in violation of California's Comprehensive Computer Data Access and Fraud Act (Penal Code § 502).

On June 24, 2026, Defendant filed the Motion to Set Aside Default Entry and Default Judgment, based upon invalid service by publication and Code of Civil Procedure section 473.5.

Plaintiff's Opposition advocates denying, based on arguments of valid service and Defendant's knowledge of service and delay in seeking relief.

II.
LEGAL STANDARD

"When a defendant argues that service of summons did not bring him or her within the trial court's jurisdiction, the plaintiff has 'the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service.'" (American

Exp. Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 387.)

A judgment is void on its face where the failure to serve a summons in support of personal jurisdiction is ascertainable from the record. (Renoir v. Redstar Corp. (2004) 123 Cal.App.4th 1145, 1154.) As to defendants invalidly served with summonses and complaints, court lack personal jurisdiction, and default judgments are void and subject to being set aside. (Hearn v. Howard (2009) 177 Cal.App.4th 1193, 1200; Lee v. An (2008) 168 Cal.App.4th 558, 564.) “[A] default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void.” (Ellard v. Conway (2001) 94 Cal.App.4th 540, 544.)

“Section 473.5, subdivision (c) allows the court to set aside the default judgment if it finds the defendant's lack of actual notice in time to defend was not caused by the defendant's avoidance of service or inexcusable neglect.” (Ellard v. Conway (2001) 94 Cal.App.4th 540, 547.) “Section 473.5 requires that the motion to set aside the default judgment be accompanied by ‘an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect’ and ‘a copy of the answer, motion, or other pleading proposed to be filed in the action.’” (Sakaguchi v. Sakaguchi (2009) 173 Cal.App.4th 852, 861.) “A party seeking relief under section 473.5 must provide an affidavit showing under oath that his or her lack of actual notice in time to defend was not caused by inexcusable neglect or avoidance of service.” (Anastos v. Lee (2004) 118 Cal.App.4th 1314, 1319.) Competent evidence is required in order to support relief under Code of Civil Procedure section 473.5. (Anastos v. Lee (2004) 118 Cal.App.4th 1314, 1319 [“the declaration of counsel contained inadmissible hearsay and double-hearsay statements, and thus lacked proper foundation, i.e., personal knowledge, to establish the requisite showing required under section 473.5, subdivision (b).”].)

In order to obtain an order for service of summons by publication, parties must show due diligence, which is not defined by any one formula. (Watts v. Crawford (1995) 10 Cal.4th 743, 749 fn. 5.) “ ‘A number of honest attempts to learn defendant's whereabouts or his address by inquiry of relatives, friends, and acquaintances, or of his employer, and by investigation of appropriate city and telephone directories, the voters' register, and the real and personal property index in the assessor's office, near the defendant's last known location, are generally sufficient. These are likely sources of information, and consequently must be searched before resorting to service by publication.’ ” (Kott v. Superior

Court (1996) 45 Cal.App.4th 1126, 1137.)

“A declaration supporting a section 415.50 application [for publication service] must state probative facts based on personal knowledge rather than hearsay or legal conclusion.” (Rios v. Singh (2021) 65 Cal.App.5th 871, 882.) “Whether the plaintiff exercised the diligence necessary to justify resort to service by publication depends on the facts of the case.... The question is whether the plaintiff took the steps a reasonable person who truly desired to give notice of the action would have taken under the circumstances.” (Ibid., p. 880.) “Although section 415.50 provides that the summons must be published in a designated newspaper that is “most likely to give actual notice” to the defendant, it does not require that the defendant actually see the publication.” (Ibid., p. 882.)

Substantial compliance with the applicable statutory mandates is sufficient for service of summons by publication, and minor or inconsequential defects are permissible. (Cmty. Youth Athletic Ctr. v. City of Nat'l City (2009) 170 Cal. App. 4th 416, 429.)

If attorneys failed to warn opposing counsel before taking a default, courts are inclined to grant motions to set aside defaults. (See Fasuyi v. Permatex, Inc. (2008) 167 Cal.App.4th 681, 701-702; Smith v. L.A. Bookbinders Union No. 63 (1955) 133 Cal.App.2d 486, 500, disapproved on other grounds by MacLeod v. Tribune Pub. Co. (1959) 52 Cal.2d 536, 551.)

An attorney has no power to receive on behalf of his client service of process by which jurisdiction is acquired, unless the attorney was specifically authorized by the client to receive service, or the attorney or other agent actually or ostensibly is authorized to receive service of process. (Warner Bros. Recs. v. Golden W. Music Sales (1974) 36 Cal.App.3d 1012, 1018.)

“[A]n attorney who undertakes one matter on behalf of a client owes that client the duty to at least consider and advise the client if there are apparent related matters that the client is overlooking and that should be pursued to avoid prejudicing the client's interests.” (Janik v. Rudy, Exelrod & Zieff (2004) 119 Cal.App.4th 930, 940. See also Slovensky v. Friedman (2006) 142 Cal.App.4th 1518, 1528 [duty element is based on the attorney-client relationship].)

When a judgment is vacated a court does not err in recalling and quashing the writ of execution. (Stegge v. Wilkerson (1961) 189 Cal.App.2d 1, 5.)

III.

ANALYSIS

Defendant seeks an Order setting aside default documents and post-judgment matters, and granting leave to file the proposed Answer, on the following grounds:

(1)

[T]he default judgment is void because Defendant was not served with the summons in the manner prescribed by statute, in that Plaintiff failed to exercise reasonable diligence to locate and personally serve Defendant, whose current address Plaintiff possessed, before resorting to service by publication; (2) the service of summons did not result in actual notice to Defendant in time to defend this action, and his lack of actual notice was not caused by his avoidance of service or inexcusable neglect; (3) Defendant's failure to respond resulted from his mistake, inadvertence, surprise, or excusable neglect; and (4) the balance of the equities strongly favors setting aside the default so that this matter may be resolved on its merits.

(Motion, p. 2.)

Plaintiff opposes, for reasons including the following:

1.

For over a year, Plaintiff repeatedly attempted service.

2. Plaintiff

gave notice through Defendant's counsel in a separate employment action.

If

Defendant's position is that his counsel in the other case never communicated that notice to him, then the filings should say so.

3.

Plaintiff obtained this Court's order authorizing valid service by publication after personal service failed at the address Defendant provided under oath in discovery.

4.

Defendant appeared after delay and claims that he knew nothing about this lawsuit.

5.

Defendant has not shown a satisfactory excuse, diligence, or a meritorious defense.

6.

Under section 473.5, Defendant must affirmatively show, by affidavit, that his lack of actual notice was not caused by avoidance of service or inexcusable neglect.

7.

Under such circumstances, the equities also do not favor Defendant.

"Extrinsic evidence, i.e., evidence outside the judgment roll, may be presented on direct attack of a judgment that is valid on the face of the record to rebut the presumption that the judgment is valid." (OC Interior Services, LLC v. Nationstar Mortgage, LLC (2017) 7 Cal.App.5th 1318, 1328.) Default judgments entered against defendants who were not served with a summons and complaint in the manner prescribed by statutes, are void, notwithstanding the defendants' knowledge of the action. (County of San Diego v. Gorham (2010) 186 Cal.App.4th 1215, 1226.)

A motion pursuant to Code of Civil Procedure section 473.5 must be made in a reasonable time, not beyond the earlier of two years after default judgment entry, or 180 days after service on the party of written notice of default or judgment entry, must have evidence that lack of notice was not the result of moving party's inexcusable neglect or avoidance of service, and must include a proposed pleading. (Code Civ. Proc., § 473.5.) Judges have discretion in granting relief pursuant to Code of Civil Procedure section 473.5. (Olvera v. Olvera (1991) 232 Cal.App.3d 32, 41.)

Here, the Court finds

that Defendant's evidence supports a finding that publication service was not based upon necessary diligence or, alternatively, that Defendant's lack of notice was not the result of inexcusable neglect or avoidance of service where counsel contacted did not represent Defendant in this case.

IV.

CONCLUSION

Accordingly, the Court grants

the Motion based upon the grounds advanced and allows Defendant to separately file the proposed Answer.